

Protecting the Next Generation: Why We Must Regulate the "New Menthol"

An argument for applying the child-protection logic of the Tobacco and Vapes Act 2026 to youth-appealing products across vaping, alcohol and ultra-processed food.

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Executive Summary

Historically, government intervention has been vital when predatory marketing targets vulnerable groups. The ban on menthol cigarettes marked a watershed moment in public health: a clear acknowledgement that hiding harmful products behind sweet, appealing flavours poses an unacceptable risk to children. Today, the UK's Tobacco and Vapes Act 2026 serves as a modern blueprint for this effort. By granting the government sweeping powers to strip child-friendly branding from vapes and ban their promotion, the Act demonstrates that decisive policy intervention is achievable. Society must now actively enforce these powers and extend their underlying rationale to other commercial threats targeting young people, namely youth-appealing alcohol and ultra-processed junk food.

The Current Landscape

The strategies behind menthol cigarettes have been modernised and expanded. Vape manufacturers historically used child-oriented flavours and vibrant packaging to drive youth adoption. Similarly, the food and beverage sectors spend billions targeting minors with ultra-processed, high-sugar items and brightly coloured alcoholic drinks designed to appeal to younger palates. Global health authorities consistently observe that industry self-regulation fails to protect young people; children remain exposed to targeted digital advertising for harmful products daily, directly shaping their habits and long-term health outcomes.

Addressing the Opposition

Opponents of stricter regulation argue that such measures infringe on personal freedom and risk fostering illicit black markets. Regarding vaping specifically, advocates note that flavoured e-liquids can serve as an effective off-ramp for adult smokers attempting to quit.

However, the Tobacco and Vapes Act 2026 provides a clear counter-argument: protecting children does not require abandoning adult smoking-cessation goals. The policy framework aims to diminish the appeal and accessibility of vapes to children while keeping them available as smoking-cessation tools for adults. Adults do not require neon packaging, cartoon mascots or candy-themed branding to break a nicotine addiction. Furthermore, arguments rooted in "personal responsibility" fall short when applied to children, who lack the developmental capacity to navigate multi-million-pound marketing

campaigns.

Policy Recommendations: Applying the 2026 Framework

STANDARDISED PLAIN PACKAGING AND FLAVOUR RESTRICTIONS

The 2026 Act explicitly authorises regulations governing vape flavours, packaging and point-of-sale displays. These powers should be implemented swiftly to enforce plain packaging and eliminate sweet, youth-oriented naming conventions. A matching standard should apply to alcoholic beverages designed to resemble soft drinks or energy drinks.

COMPREHENSIVE MARKETING BANS

The 2026 legislation bans the advertising, sponsorship and free distribution of vaping and nicotine products. The government should extend this standard to prohibit digital and physical advertising of ultra-processed junk food in spaces where children make up a significant portion of the audience.

RIGOROUS LOCAL ENFORCEMENT

The 2026 Act empowers Trading Standards officers to issue immediate Fixed Penalty Notices for underage sales and creates a framework for mandatory retail licensing across physical and online vendors. Strong enforcement, anchored by the threat of licence revocation, must form the foundation of all age-restricted product regulations.

Conclusion

If society acknowledges that menthol cigarettes represented an unacceptable gateway to addiction, it cannot ignore modern equivalents. The Tobacco and Vapes Act 2026 provides the necessary tools to dismantle predatory marketing. Swift, uncompromising enforcement of these measures is essential to safeguard the health of future generations against commercial profit motives.

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